7/10/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the rates, charges, rules and regulations of Consolidated Edison Company of New York, Inc., for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the rates, charges, rules and regulations of Consolidated Edison Company of New York, Inc., for Gas Service.

PUBLIC STATEMENT HEARING

DATE: JULY 10, 2025

LOCATION: C.W. Mixon Center
112-50 Springfield Boulevard
Queens Village, New York 11429

BEFORE: ALJ TARA KERSEY
ALJ DAKIN LECAKES

Reported by Ildiko Nyari

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(The hearing commenced at 6:04 p.m.)

ALJ KERSEY: I call cases 25-E-0072, and case 25-G-0073, Proceedings on motions of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc., for electric and gas service.

My name is Tara Kersey, and with me is Chief Administrative Judge, Dakin Lecakes. I, along with Judges James Costello and Judges (sic) Nicholas Planty, have been assigned for the Department of Public Service to these rate cases. Chief Administrative Judge Lecakes is with me today to preside over this public statement hearing held on behalf of the New York State Public Service Commission regarding the proposed changes in the electric and gas delivery rates and practices of the Con Edison Company.

Before we begin, we would like to say thank you to New York State Senator Comrie's office for helping arrange the location for tonight's hearing.

Con Edison filed amendments to its electric and gas tariff schedules on January 31st,

2025, proposing to increase the annual electric and gas delivery revenues for the twelve-month period ending December 31st, 2026. As of its April 10th, 2025 updated testimony, Con Edison proposes to increase its electric delivery revenues by approximately 1.6 billion dollars and its annual -- its natural gas delivery revenues by approximately 349 million dollars. The actual bill impacts of these proposed changes on any particular customer class will vary based upon revenue allocation and rate design.

Under New York State Law, the Public Service Commission must consider the Utility's proposals and may adopt or reject them in whole, or in part, or modify it. At this time, the Commission must decide these cases by December 30th, 2025. However, this date may be subject to further extension.

Regardless of how these cases proceed, the Public Service Commission will make the final decision regarding the Company's terms and conditions for providing electric and gas service. This hearing is being held so that you can provide your comments

on Con Edison's proposals for the Commission's consideration.

In making its decision, the Commission will consider the evidentiary record in these cases and the comments made at this hearing.

The Public Service Commission has seven members -- the chairperson, Rory Christian, and six commissioners, James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova.

Statements that you make today will become part of the record. The court reporter here will prepare a transcript of the hearing, which will be included in the record of these proceedings, so that your comments can be considered by all members of the Commission. When it is ready, the transcript will be available for public view on the Department of Public Service's website.

Today's hearing is not a question-and-answer session; we are here only to listen to your comments. However, if you do have any questions or concerns related to your particular bills, Con Edison has staff, and they have materials here. They have

provided a dedicated phone number and email for customers to get information and to speak directly with, regard to customer service and billing complaints. You can obtain those materials. They're on that table right there.

We have members of our Consumer Service's staff for the Department of Public Service. They're here as well, and they can assist you with questions or complaints regarding your utility service.

If you do not wish to speak at today's hearing, but you would like your views included in the record, there are other ways to comment. You can submit comments on the Department's website by regular mail or by phone. Information regarding these other methods are available from the Department's Office of Consumer Services staff, who are seated right here.

Regardless of how the comments are submitted, whether you state them here or by the other -- the other means that I just mentioned, all comments are given equal consideration. According to the Secretary's notice for this event, comments must

be received by November 21st, 2025, to ensure that the Commission is able to consider them prior to their final decision.

If you would like to make a statement here tonight and you have not done so already, again, please fill out a registration card. The cards are available with our outreach staff right here. I'm going to call speakers up one by one, using the cards that have been filled out, in the order in which they were received. Please speak slowly and clearly so that the court reporter can accurately capture your statement for the record. Please be respectful when delivering your comments. Finally, I'd ask that everyone silence their phones.

UNIDENTIFIED SPEAKER: Excuse me. I don't know if I'm allowed to -- if I am allowed to ask a question? Can I ask a question?

ALJ KERSEY: You can ask a question right now, but it's not really a forum for questions and answers. Go ahead.

UNIDENTIFIED SPEAKER: (Indiscernible) Senate representative for Con Edison?

ALJ KERSEY: Con Edison has customer

service folks that are here. But this is not -- we are not here to -- we are not here as an information session. This isn't an information session.

UNIDENTIFIED SPEAKER: So in other words, (indiscernible) here, I want to know why they're arranging -- why they're quoting an increase.

ALJ KERSEY: You're here --

UNIDENTIFIED SPEAKER: (Indiscernible) of the increase, so what is -- what is --

ALJ KERSEY: You're here to discuss -- that information is on the Department of Public Service's website, all of the information concerning that. So this is for you to --

UNIDENTIFIED SPEAKER: (Indiscernible).

ALJ KERSEY: -- this is for you to make your comments heard about the proposal that's in front of us. So if you'd like to say something about the proposal, please fill out a card and come on up here and make your comment on the record. We'd be happy to hear from you. That's why we're here.

PETER: I hope those are anonymous.

ALJ KERSEY: So our first speaker --

PETER: And I hope -- I hope if I say something, that it's somewhat anonymous. You have my name --

ALJ KERSEY: Typically, we put these on the record because you're making a public comment. So I would now say what your name is and say that you're able to come up here and speak.

PETER: I noticed that the names are (indiscernible) --

ALJ KERSEY: Do you want me to just say your first name?

PETER: Yes.

ALJ KERSEY: Would you like me -- okay. Absolutely.

PETER: I would like that.

ALJ KERSEY: Okay. No problem. So our first speaker is Peter.

PETER: Okay. Thank you.

ALJ KERSEY: Okay?

PETER: Thank you.

ALJ KERSEY: Sure. Now, if you don't mind, just so the court reporter can get it down. Okay. Thank you.

PETER: Hello. I can't tell you how worked up I am to have the opportunity to speak to Con Edison in person. In past years, I've sought out these hearings, but they've often been in very inconvenient places, Upstate, et cetera. I only found out about these hearings today -- yesterday, actually, on a New York-run television station. I noticed that there's nothing about the hearings on the ConEd.com website, or at least it is very difficult to find.

I'm here because I'm frustrated, particularly in the winter, by bills exceeding 750 dollars for a single family home that I'm not even in half the time. I noticed that the supply charges are only half of the cost. The rest of it is for delivery, 300 or 400 dollars a month, even when my system is working perfectly.

My home does not require any special attention, but the money is collected every month for me, and a similar percentage from others like me, this excessive amount. I'm a senior citizen and there are a lot of other senior citizens in worse positions than I am. How many times has a neighbor,

or somebody I know, turned to me, when we see work being done on our street by Con Ed, and there's one Con Ed worker in a hole, and there are five others standing around at the rim of that hole talking to each other.

Although the CEO, I'm sure, is being paid a ridiculously exorbitant amount and probably will be getting paid more, I think that the average worker is probably overpaid as well.

Is anybody holding Con Ed to account? It feels like a renegade company able to do whatever it wants. Are they not our employees? What are they? Are they public or are they private? If there's a public aspect, then they are our employees. Are any of our lawmakers digging deep into the cost numbers that Con Ed shares, the confusing numbers that nobody understands?

And now, more money is wanted for infrastructure and of supposed changes to greener energy, or something like that. I feel that the increases that Con Ed asked for are unwarranted. They shouldn't get any kind of increase. The prices are too high, high enough, if not too high. I fear

that these hearings are shams to convince the gullible people out there that Con Ed cares, when actually this hearing is about just going through the motions. Ask for a ridiculously high increase and then when Con Ed accepts less than that, they look like they're being reasonable. Isn't that the way it works? Con Ed, prove me wrong.

ALJ KERSEY: Thank you for your comments. Thank you.

Our next speaker is Sherwyn James.

MR. JAMES: Good evening, members of the Public Service Commission and thank you for allowing me the opportunity to address the issue of the proposed rate increase.

My name is Sherwyn James, and like many of my neighbors and residents of the city and state, I join my voice in opposition to any rate increase. The mere idea that Con Edison would suggest a rate increase of eleven percent for electric and thirteen percent for natural gas is beyond comprehension.

Like my family, there are many families who are simply doing what they can to make

ends meet. Many of us are already experiencing significant increases in our electric and gas bills, simply due to the cost increase because of unusual weather patterns that we've been experiencing throughout the year, specifically hotter summers and colder winters. There are many families which are working two and sometimes three jobs, simply to keep up with all of the bills that they're now faced with.

The reality is that while Con Edison is calling for an eleven percent rate hike, few, if any of us, have the luxury of having our salaries increased by eleven percent. I would further suggest to you that in many instances, were it not for balanced billing, many households would simply be in significant arrears or would have received shutoff notices on their utility bills.

Con Edison provides service to over 3.6 million customers, and gas service to approximately 1.1 million customers in New York City and Westchester. In addition to paying for the delivery of gas and electric service, we also pay for the actual amount of gas and electric used, both of which has continued to increase at a rate beyond the

cost of living.

In addition to paying these increases, along with them are increases in the amount of taxes being paid to New York State, New York City, an MTA surcharge, and other surcharges. I do not simply blame the PSC for the financial pain being inflicted upon many families throughout our city and state. I also hold our elected officials complicit and responsible for this crisis.

The truth is that the governor and the State, and City-elected officials are ultimately -- ultimately responsible for imposing these taxes and fees, and they have never seen a fee or a tax that they did not like. I would, for once, like to see them roll back or eliminate a tax or a fee. But of course, that's wishful thinking. While I encourage the PSC to reject any rate increase, I also encourage my fellow residents to join me in going to the polls in 2025 and 2026 and use their voice to -- use their vote to voice their displeasure.

Let's stop continuing to vote for the same old elected officials over and over again, and instead vote them out and replace them with people

who feel and understand the pain being experienced by many of our families.

Thank you for the opportunity to address this body on this matter.

ALJ KERSEY: Thank you.

UNIDENTIFIED SPEAKER: Thank you.

ALJ KERSEY: Thank you so much for your comments.

Is there anyone else that would like to speak tonight? We're going to hold the hearing open. If you decide that you would like to, just fill out a card up here, and we will reopen it immediately to hear your comments so they can go on the record. We are going to hold this open until 6:45, at present. So we're going to go off the record. But if I get any cards right now, we'll reopen up, and we'll hear whatever you have to say.

Okay. We are off the record.

(Off the record)

(On the record)

ALJ KERSEY: Okay. Just give us one second, folks.

And yes, if you would just like to

speak up at the podium in the mic. Jacqueline Dolly.

MS. DOLLY: Jacqueline Dolly.

ALJ KERSEY: Thank you.

MS. DOLLY: As per my understanding, Con Ed is proposing double-digit hikes in the electricity fee. Now, we already went through the shift from analog to digital smart meters, where we were essentially forced to put in smart meters with the threat that we would be charged at least 100 dollars more per month just for us to write down the reading ourselves and send it in -- we would be charged 100 dollars more. And so we were forced to put in the digital smart meters.

When my digital smart meter was installed, I noticed that my electricity bill doubled. I am now paying -- I have never -- I can't even explain how, I'm getting sometimes close to 500 dollars-plus per-month bills. There's a senior in my home, where I need to regulate cold air in the summer, and we all know we're going through global warming, and how bad that is for people who are elderly and senior. And we have very long winters, some of the coldest winters on record lately.

So I want to know, with inflation, with wages being stagnant, with people being laid off, with being squeezed for health care -- some people will no longer get the coverage that they had -- with property taxes increasing -- and actually the property taxes in the area that I live in, Cambria Heights, is actually higher than what it should be when you look at comparable neighborhoods.

So I'm wondering, with all of this converging on us at the same time, how are we supposed to endure a double-digit hike in electrical prices. So what we're actually going to see, we're going to see more deaths in the winter as well as the summer. You're going to see deaths of people who are dying from heat stroke, overheating, because they're afraid to put on the air conditioning. You're going to see deaths in the winter through people freezing to death because they are afraid to put on their heating. This is the reality.

And this is -- it doesn't matter whether you are working or not. I think we're all enduring the same pressures, economic pressures. And I feel that with things have been ratcheted up on us,

and we have no say in the matter. We are being disempowered in an environment where we're told that we have a say, in an environment where we're told that people listen to the community voice, our reality, our experience is that this does not happen, and that our realities and our testimonials are not taken seriously, and that death has become acceptable as long as people are making a profit. This is what we're experiencing.

So yes, you can go ahead and approve the double-digit hike in prices, but know that blood will be on the hands of all of the people who approve that, because it will happen. It is happening. And so for us, this is more than economics. This is life and death for many people in the communities that we live in. It's a life and death decision. And I think we all feel that no one is listening to us.

And so the anger and the frustration that you are hearing from everyone here, these are real emotions from people whose families and communities are suffering. They are seeing it. They're experiencing it. This is real for us. So when I rush here after a day's work, struggling to

get here so that I can make my voice heard is because it is life and death to me. I recognize that for my community and the people around me; I recognize it.

And so all of these efforts for Con Ed, and we experienced it in multiple ways of these decisions being made, and us being shut out, meetings being held during times where they know the community is not available to participate. We cannot choose to take time off work when we're under economic pressure. When people are being laid off, we can't choose to come at any time.

And so when these things are not being considered so that we can actually make our voices heard, we show up angry, and frustrated. And yeah, we can yell at you because you're the only people in front of us. You're the face of this to us. Con Ed isn't here, so you're the proxy for them. They should be here. They should be here.

And so we cannot continue to just say, you know, it's our elected officials. Yes, it is our elected officials, but I think it's very clear to everyone in our communities, in New York State, in the country, that our elected officials are not

always serving us.

UNIDENTIFIED SPEAKER: It's true.

MS. DOLLY: They serve the people who fund them.

UNIDENTIFIED SPEAKER: Yeah.

MS. DOLLY: Who is funding us? Who is looking out for us? We're the majority, but no one is listening. And so this is why we're frustrated. This is why we're here. And I can guarantee if more people knew about this, this place would be packed. You wouldn't be able to fit them in here. No one wants another hike in a vital resource, energy. You might as well cut off our air and our water. You might as well do that, because that is what it is. These are vital resources. We cannot do without heat, without cool in the summer. We can't do without these things. So this is not a game for us. This is real.

ALJ KERSEY: Thank you. Thank you for your comments.

UNIDENTIFIED SPEAKER: It's on the record, yes.

ALJ KERSEY: Our next speaker is

Claudia Gray.

MR. GRAY: Hello, everybody.

IN UNISON: Hello.

MR. GRAY: How are you doing? I am late, so I don't have the privilege or the advantage to know who are sitting at the table, but I think I'm being told you're not Con Ed.

ALJ KERSEY: I am an administrative law judge with the Public Service Commission. My name is Tara Kersey. This is our chief administrative law judge at the Public Service Commission, Dakin Lecakes. And this is our court reporter who is taking all of the comments down for the record.

MR. GRAY: So are you representing us, or you are a neutral body?

ALJ KERSEY: The Public Service Commission is the decision maker when it comes to the Con Ed's rate proposals, the ultimate decision maker.

MR. GRAY: So you are representing us?

ALJ KERSEY: We represent the Public Service Commission.

MR. GRAY: The people, the residents?

(Cross-talk)

MR. GRAY: I'm not clear.

ALJ KERSEY: We represent -- we represent a state agency that represents the Governor's Office.

MR. GRAY: So the answer is, no, you're not representing us?

ALJ KERSEY: You're representing you here tonight.

MR. GRAY: Okay. Okay. I'm not clear, but it's not important at this moment.

Good afternoon. Thanks for the opportunity to provide feedback on Con Ed's proposed price increase, which we, from the 210 Street Block Association. object to. It's simple, not affordable.

Con Ed's Annual Reports brags: Con Ed, Inc. is one of the nation's largest investor-owned energy delivery company with approximately 15 billion in annual revenues, 15 billion in annual revenues. The Company's revenue for the -- for the twelve months ended March 31st, 2005, was over 15 billion dollars, up by over 8.49 percent. We, the residents, cannot afford an increase.

On average, each year in New York State there are about 350 heat-related deaths in New York City. More than 500 New Yorkers die prematurely because of hot weather each summer, per the New York Health Department. We, the residents, cannot afford an increase.

The proposed increase would see an average increase of up to 95 dollars per month for the average QV household. Small commercial businesses could see an increase of over 203 dollars per month. Our income isn't keeping up with Con Ed escalated costs. Our salary increase, if we're lucky, is between zero to four percent. The average CEO salary is above 200,000 dollars plus bonus. The average executive salary of Con Ed is over 200 and 1,000 (ph.) K per year, plus bonus, stock incentive, et cetera. Con Ed's CEO makes over 100 million dollars a year, twenty-six percent above the average CEO salary.

Every company has operational costs, which include infrastructure improvements. Con Ed, like most other businesses, must invest back into its company. It's indeed offensive for them to imply

they're doing improvements, which results in escalated costs to us, the residents. To reiterate, we just can't afford an increase and are actually requesting a reduction.

I am representing my block because we need a decrease in our bills. To the citizens in the room, I suggest to you, in October, one day per week, we just reduce our Con Ed usage. We can't really boycott Con Ed, but could we reduce our usage for one day per week. Would that impact their P&L, their eight percent increase on our backs?

Now, many people I spoke to responded, "It's such a waste of time. They always win. They do what they do. It's just so they can enter something in the public comment that the community had a chance to speak, and it's a done deal." Am I naive to think my representation tonight will impact the decisions, would actually reduce the -- would actually scale back the increase? Would actually consider it's expensive to live in Queens. It's expensive to live in New York. Most of us in this room are middle class, and I sound like I'm living as a homeless person. I feel like I have to beg.

Now, I went to school and got my degree. I did everything I needed to do. I became a homeowner. Yet today, I feel like I'm begging. So I am begging the decision maker to actually reduce our energy bill.

I thank you for the time. Residents, citizens, we have more power than they think. I think we can respond by not using their energy or reducing their energy use. In October, they will feel that. Thank you for your time.

Claudia Gray, from 210 Street Block Association. I'd like to enter this into the record, it's rushed, so please forgive the mistakes.

ALJ KERSEY: Thank you.

ALJ LECAKES: Thank you very much.

ALJ KERSEY: So I just want to -- I want to take this moment to explain, because I know some people came in late, what our role is in this process. So the Public Service Condition -- Commission, excuse me, has to consider the utilities proposal. So the utility has come in -- Con Ed has come in, and they've made a proposal to raise the rates. Under New York State Law, the Public Service

Commission is the organization that would adopt that proposal but could also modify it, adopt it, or reject it.

So at this time, the Commission must decide these cases. There are two cases as I had mentioned earlier, 25-E-0072, and 25-G-0073. And on our website www.dps.gov, there is a search box, and if you put those case numbers in, you can see all the filings that have come through, or that are going on, correspondence, things like that. You can make public comments on our website.

But at this time the Commission has to decide these cases by December 30th, 2025. That date may be subject to further extensions, but that's where we stand now.

Regardless of how the cases proceed, the Public Service Commission will make the final decision regarding the Company's terms and conditions for providing the electric and gas service. And so this hearing was being held, and is being held, so that you, the public, can provide your comments on Con Edison's proposals.

As I had mentioned, there are other

ways you can -- we would love to hear from everyone in this room, anyone who would like to speak. If you just want to come up and fill out a card, our Consumer Services Office will bring us that card and you can make a public statement. Otherwise, you can also put comments on our website, or by telephone. Our website, again, I'm sorry -- it's DPS -- it's www.dps.ny.gov -- my apology on that. But you can get information on what our website is, and our information, we've got handouts up here, so that you can get that information so that not only can you make that comment today, but if you're not comfortable with public speaking, or want to think about it, or whatever, you can make your comments by email or by telephone as well.

So we are going to -- does anyone else have a public comment that they would like to make? Would anybody else like to speak tonight?

UNIDENTIFIED SPEAKER: Excuse me, you said 25-what?

ALJ KERSEY: Yes. Sure. The case numbers are, 25-E -- E stands for electric --

UNIDENTIFIED SPEAKER: So E, that's

25-E?

ALJ KERSEY: --0072.

UNIDENTIFIED SPEAKER: 0072.

ALJ KERSEY: And 25-G, that stands for Gas --

UNIDENTIFIED SPEAKER: Um-hum.

ALJ KERSEY: -- 0073.

UNIDENTIFIED SPEAKER: These are the proposals you said, right?

ALJ KERSEY: That's correct. That's correct.

UNIDENTIFIED SPEAKER: Thank you, ma'am.

ALJ KERSEY: That's the information on our -- on the website.

UNIDENTIFIED SPEAKER: Thank you very much.

ALJ KERSEY: Yes, ma'am.

UNIDENTIFIED SPEAKER: (Indiscernible) ever, let us say, that Con Edison, is ridiculous, the increases if you do not approve it, do you ever say no, or it's just -- that's just a way to (indiscernible), but it seems to me that it's a waste

of time.

ALJ KERSEY: Okay. We're going to -- we're going to go off the record.

UNIDENTIFIED SPEAKER: You are going off the record?

UNIDENTIFIED SPEAKER: You're what?

ALJ KERSEY: Okay. We are going off the -- we are going to go off the record.

(Off the record)

(On the record)

ALJ KERSEY: Okay. So we are back on the record. And this is the continued recalled comment -- further comment, I should say, from Jacqueline Dolly.

MS. DOLLY: Yes, thank you.

ALJ KERSEY: Certainly.

MS. DOLLY: Yeah. So I wanted to make it clear to everyone that we went through a general election recently, presidential election, where there were promises made that energy costs -- one of the big promises made was that energy costs would come down. And we were inundated with the phrase, "Drill, baby, drill", and we had that drilled into our brains

as the answer to energy costs coming down. We're now being subjected to the possibility of double-digit -- double-digit hikes in the cost of energy after we were promised, energy costs would be lowered.

That's coming on the heels of a bill that was just pushed through, which is going to impact us within the next twenty-four months. We are going to be witnessing the type of hardship people have not had in a long time, in multiple generations. We're going to be subject to that.

And so this is like an -- this is an insult. On top of all of that, this is an insult to our intelligence, an absolute insult. And I see this as a battle of David versus Goliath. So we now have to weigh the benefits of whatever Con Edison is saying, the benefits that they're -- I'm sure they're going to come with infrastructural benefits. They're going to come with all of that, without even considering the human costs to these hikes. And believe me, they have put in the highest hike they can possibly put in -- that's what they're proposing -- with an understanding that it will be negotiated down.

So I think that this is like three-card monte, where we are being told that there is an option for this to be off the table. I think that option does not exist. I think it is either we put it in -- so it's like we give you thirteen to eighteen-percent hike, or you negotiate down from that. So you compare thirteen to ten percent, ten percent looks better. Compare it -- thirteen to five percent, six percent, eight percent, it looks better. It doesn't feel better to us, though. It doesn't feel better. It doesn't feel better.

And so the reality is, is that they are strategizing to have a hike no matter what. They're not stupid. They're not going to come in without knowing that this is going to be negotiated down. They know that.

UNIDENTIFIED SPEAKER: What do they want?

MS. DOLLY: Right? We're between a rock and a hard place here. So it's either we are -- we are David, in this story, people. We are David. We're the boy, David. They are the Goliath.

UNIDENTIFIED SPEAKER: Maybe one

giant.

MS. DOLLY: Right. So it's up to us. It's up to us. So if we sit down and allow this to happen and stand down, and cry about it, and feel that we cannot stand up to this, it is going to happen. We have the power. They do not have the power. We have it. We have it. So you've already been duped once. It's up to you to decide, are you going to be fooled again, and again, and again?

You decide. This is not a Con Edison decision. They do this because we allow them to. We have the leadership and the business morals and ethics that we have because it is what we deserve. It is what we voted for.

ALJ KERSEY: Thank you. Thank you for your comments.

Our next speaker is Ayanna Kaalund.

MS. AYANNA KAALUND: Good evening, everyone. My name is Ayanna Kaalund, I'm a resident of St. Albans. I am a fourth-generation Queens native. My children have the pleasure of being fifth generation when my family relocated up here, escaping Jim Crow of the South. So I've been here my entire

life. And when my great grandparents came up here, this was a place of opportunity, a place of economic growth, where every generation can do better than the previous, to give everybody the opportunity to be able to reach their full potential.

And unfortunately, New York City is becoming a place for people who come from considerable wealth and stifling the regular man who tries to make a living here. We have people who are on pensions, we have people who are on disability and they are on a fixed income, as well as the -- the income growth for most people here, annually, has not gone up to match the rate of increases we've had matching our utilities, matching rents, matching the mortgages, the taxes that we are currently experiencing.

This is something that is not sustainable long term. We have people who pass away because they can't turn on their air conditioners because they can't afford it. There's no reason why in the United States of America, right now, that people should be dying because they can't use their energy because they can't afford it. There's no

reason for that.

And I'm also a United States Air Force veteran, and I find it disgusting that people have to fight to have something that we have a right to. You work, you earn your money, you should be able to afford to live in New York City, or anywhere in the United States currently, and that's not the case.

I think that something needs to change, and I do understand that there is infrastructure that needs to be repaired. I do understand that there are things that have to be taken care of. However, if you continue to allow these increases, I remember that nine percent increase from two years ago and my energy bill was ridiculous. If we do this next double digit proposed increase, that's over twenty percent in less than three years. That makes no sense.

I know my income isn't increasing enough to compensate for that, and I know many other people's incomes are not increasing to compensate for that. We are living, breathing human beings. We understand that this is a business, that people need to make a profit. However, it's not as if we have an

option to turn to another energy company. Con Edison is the only one we have. It's -- essentially it can be considered a monopoly. Yes, there are other companies that may say that their standard on their own, but everyone has to come through the Con Edison meter.

It's not fair, and it's not right, and you're going to continue to lose people who live in New York City. We have over eight million people living in New York City right now. And if everyone's bill is hit by a minimum of eleven percent, how are most people supposed to live? That's a ridiculous amount of money. Yes, the infrastructure does need to be updated. However, we need to have a lower percentage rate, at least to give people an opportunity to still live, because that's what we deserve.

People work their butts off. They take care of their families. They take care of things at their job. And the last thing they should worry about is, I can't turn on my air conditioner because I simply can't afford it.

Not only that, Con Edison also has

surcharge pricing during certain times of the day. From 8 a.m. to midnight, we are charged more for our electricity.

UNIDENTIFIED SPEAKER: That's right.

MS. AYANNA KAALUND: And that's more -- they have to make their money, and I understand it's even more so in the summertime. So right now people are struggling financially, and it's not right to propose such a high hike in rates. There needs to be a middle ground or something that works for the common man. Thank you very much.

ALJ KERSEY: Thank you.

Our next speaker is Marelva Brison. Thank you.

MS. BRISON: Thank you for having me.

ALJ KERSEY: Thank you.

MS. BRISON: Thank you for allowing me the opportunity to speak. I'm an educator, a highly-educated citizen, and I have been living here in Queens Village for nearly thirty years. I'm at my retirement age. However, I'm not able to retire because all of our bills and obligations are rising much higher than our salary.

And so working in the Department of Education, I am currently supposed to be on summer break, but I'm working just to make ends meet. And so an increase in our utility bills, it's just not sustainable, like all the other speakers said. I'm -- I love living in my home that I've worked on and built for the past thirty years, but I, too, am considering moving to another state where I will be able to live off my retirement pension.

And it's not fair that we are citizens who have built this community, and we have to leave once we retire, because, no, the overtime that I'm doing now, the excess working I'm doing now to make my ends meet, I'm not going to have that as a retired teacher, educator, that I have poured so much into this city that I love, and I have worked, and worked for.

And we all know the teachers are so underpaid, yet, we have to be highly educated. You cannot teach in New York City without a master's degree, and we know how much a master's degree costs, right? We know how much a bachelor's degree cost. Now we have a master's degree, and if you want to

earn a little bit more money on top of that, you have to go back and get a second master's degree.

UNIDENTIFIED SPEAKER: Yes.

MS. BRISON: Yes. And with all of that, I am struggling and I cannot even take a summer off. And now, I'm hearing that Con Edison wants a double-digit raise, while we're living right now where inflation -- we can't even go to the supermarket. Everything has gone up but our salaries.

UNIDENTIFIED SPEAKER: Tell it.

MS. BRISON: And let me just say another thing, too. And I'm not that well versed on the Big Beautiful Bill yet, but I do know that there's a part of that bill that says that corporate taxes will be reduced, and it also will include -- include some other tax benefits to corporations. What about the common, everyday human being that is working and struggling in this country, in this United States? What is going on here that these corporations are becoming rich, billionaires on our backs, and we are struggling, struggling.

I'm angry just thinking about my Con

Edison bill is constantly going up. And what is this -- in the summer, it's more? They get more money. It should be less. I want no increase. They should get nothing. They should get zero. They should give some kickbacks now. We all need to work together right now, all of us, so that we can keep the good people -- yes, people like me, who wants to help to educate the next generation. So I think you need to think long and hard when we think about this trick that they're doing.

Yes, they inflated whatever they wanted so that we can then be satisfied, like, oh yes, look, they didn't get the fifty percent they wanted, they settle for half, so let's just sit down and be quiet. No. And I also -- I agree with the speaker that said that we should sit in the dark for a day or two. Yes, we should, and let them feel it. Let them feel it in their pockets because they're being greedy. And we can do that.

We have another company that has felt the -- the pinch when --

UNIDENTIFIED SPEAKER: Target.

MS. BRISON: -- yes, exactly. We

should do -- Con Edison can be our target. Yeah. We can sit in our backyards, and fan, and do whatever we need to do, fan ourselves with -- by hand, so they will feel it. It won't be for long because they want that money. So I think that we should think about that, talk about that, and go public with it, and hurt them in their pockets. Thank you.

ALJ KERSEY: Thank you. Do we have anyone else that would like to speak this evening, if you would?

UNIDENTIFIED SPEAKER: That's what I need?

ALJ KERSEY: Just fill out a card, yeah.

(Pause)

MS. FRANCINE KAALUND: Can I go right up there now?

ALJ KERSEY: Yes. You can go right up; you're right.

Okay. We're still on the record, folks. And our next speaker is Francine Kaalund.

MS. FRANCINE KAALUND: Good evening.

ALJ KERSEY: Good evening.

MS. FRANCINE KAALUND: My name is Francine Kaalund. I didn't plan on speaking because I really wanted to just hear what was going on today. But as I'm sitting here, and I'm listening, and I listen to this -- this teacher. I'm a former teacher, and I'm on a retired teacher's salary. And let me tell you something -- it ain't -- it ain't all that great. If I didn't own my home, I would not be able to survive in New York because the rents in New York are crazy, 3,000 dollars a month, 4,000 dollars a month, who makes that kind of money; who does?

UNIDENTIFIED SPEAKER: Con Ed.

MS. FRANCINE KAALUND: You can't survive. And you pick up Social Security, and so it helped you to survive, but for how long? With the increase in Con Edison, the increase in Brooklyn Union, et cetera, it's ridiculous.

I get my bill, and I look at my bill, my cost for carrying Con Edison and my other utilities are more, sometimes double or triple what I actually used in electricity, which makes no sense. Why should I have to pay you so much money just to use electricity, or to use gas, or any other utility

that I have? It makes no sense.

And you want to charge me more? What do you want me to do, because you can't even buy dog food, because that's expensive. So what am I supposed to eat? What am I supposed to do about my hypertension medicine? What am I supposed to do if I have a heart attack? What am I supposed to do if I have diabetes? I'm supposed to not get my medication? Let's be real about this. People who are asking for these raises, they don't understand what the common person goes through.

You have these people that wanted to speak -- and spoke of hundred -- how much money these companies' -- the executives are making, why are they making so much money? How come their salary can't be cut? How can they have all of that money? They don't live down here with us. They don't understand. It's expensive, and it's not a joke. And it's very serious. When you see your neighbors, especially senior citizens, can't make the bill. And we, who can get around, check up on them, and their house feels like an oven, an oven. You can't breathe. Some of them have COPD and other informities (sic)

where they cannot breathe, respiratory issues.

And you tell them, oh, go to a library or cooling centers. How are they going to get there? Many of them are walking in walkers. Many of them have wheelchairs. Many of them can barely get to the bathroom without assistance. How are they supposed to go to these cooling centers? Let's be real. Let's be real.

They need to take a minute and reevaluate and actually get on board with the person who is the common New Yorker, the person who busted their butt to make sure that they have what they need, to make sure that these children have an education, because being an educator is not the easiest job when you have to deal with so many different personalities.

I worked in the high school. I had over 300 kids a semester. I had different classes. I taught science, so I taught lab classes, and I taught recitation classes. And I have to give grades for lab classes, and recitation classes. We're not talking a couple of kids, there was thirty-five, sometimes thirty-eight kids in a class, overcrowded,

times nine because you have recitation and labs, and then they expect you to be able to do that, and you bust your butt.

You've got to fill out grades, you've got to take grades, you've got to make up homework assignments, you have to check homework assignments, you have to make up tests, you have to check tests. Excuse me. And teachers do not get that much money that we have to -- that we -- let's put it this way -- you work, and you come home, and you work. And if you have children, you come home from work, you do what you have to do with your family, then you still have to go back to work.

And now, everybody is getting emails here and emails there, and they get attitude, because you don't want to answer your email at 9:00 at night, and then you do these things and when you retire, you can't live here. That makes no sense. No sense.

So they need to take a step back, and they need to think about what they're really doing, because in the long run, they're hurting themselves -- oh, wait a minute -- maybe what all of the people who we considered poor, which is us, to

leave New York so the billionaires can have all the fun. Is that what's going on?

Think about it. Because we are being pushed out of New York.

ALJ KERSEY: Thank you. Thank you for your comment.

Our next speaker is S.D. May-Kendall. And I might be saying that wrong, but please feel free to come up. Thank you.

MS. MAY-KENDALL: Hello. My name is S.D. Kendall. My husband and I are both City workers, the City New York. I'm a retired police officer, and my husband worked for the Department of Sanitation. We are both homeowners here in Queens. We have two children. One is away at college, the other one goes in the -- in the fall.

I'm also an Army vet. My husband and I were both born here in Queens, and with this proposed Con Edison increase, this will put us all behind the eight ball trying to afford, you know, what we hope is the American dream.

This increase will hurt everyday residents in New York City. I served my country, my

community with honor, and I will hope that I'll be able to continue to live in New York City, but with all the, you know, increases that New York City is now bringing forth to the residents.

So with that being said, I also have a mother and my three aunts that own homes here in Queens. This increase and that also in-between '74 and '85, three homes between us -- well, four with mine, this proposed increase is going to affect the seniors in our neighborhood in such a detrimental way where they can barely afford their mortgages now on their fixed incomes.

My siblings and I, we all still live in Queens, and it's affecting our whole community. We have family dinners, the discussion around the table is that -- the rising cost of everything. So with this proposed eleven percent increase, is going to hurt working American families of Queens, and all of New York. So please, hopefully, someone will consider that this increase doesn't need to happen at this rate, at this time.

ALJ KERSEY: Thank you. Is there anyone else who wishes to make a statement? We will

sit here.

(Conferring with Judge.)

ALJ KERSEY: Okay. We have someone else who wants to come and make a statement in about ten minutes. Senator Comrie will be here in ten minutes and would like to put a statement on the record. So we're just going to go off the record for ten minutes, and we're going to wait for the senator to come and make a public comment

If anybody else would like to speak, though, in the meantime, please, come fill out a card; we would love to hear from you.

UNIDENTIFIED SPEAKER: While people decide to speak, is there an economist in the room?

ALJ KERSEY: We're just going to -- we're going to go off the record, though, until the senator -- the senator gets here, or we receive any more cards.

(Off the record)

(On the record)

ALJ KERSEY: Okay. We are on the record, and we have another speaker this evening, Senator Comrie.

SENATOR COMRIE: Thank you. Good evening, everyone. I want to thank the Commission for coming out to Queens and being out here at the Charles Mixon Center here in Queens Village. It's an opportunity for the public to come out.

I am State Senator Leroy Comrie. I represent this area in the 14th Senate District, and I chair the Corporations, Authorities and Commission in the State Senate. And we wanted to thank you again for creating another opportunity for the public to offer input to the impending decision regarding Con Edison's rate case.

Earlier this year, we hosted a roundtable with stakeholders, including parties to this rate case, to give legislators more insight into the rate case process, and some of the challenges seen by parties of the rate cases.

New York is frequently cited as one of the most unaffordable states to live in, and this is an opportunity to make everyone aware of how utility increases affect constituents and the fact that the Department of Public Service has an obligation to make sure that this feedback is considered in the

final rendering of your decision regarding this rate case.

We have all had constituents send to us copies of their bills, or looked at our own bills and wondered how they continually get increasingly expensive, which leads to looking into how the Public Service Commission approves these rates. And the deeper you look, the more you recognize that there are major inefficiencies from a prior rate case that severely affects consumers later on.

Utility companies are applying for rate increases under the guise of CLCPA growth -- CLCPA goals; however, these infrastructure changes are not always in alignment with the statute that can be approved by the Commission. When looking at the law, there are some things that we need to firm up in the law related to how to case -- rate cases are conducted.

For example, the response times for motions, the ability to have evidentiary hearings be virtual, and confidentially require -- and confidential -- confidentiality requirements when entering into a potential settlement. These

limitations are hindering the best possible outcome with rate cases and need to be addressed is legislatively.

During this year's session, my colleagues and I sponsored legislation that would create a (audio interference) Commission that is acting on behalf of the public. We passed out -- we put out a Rate Hike Notice Senate Bill, 5555-B, which would be straightforward, and it requires that if utilities are going to raise your rates, they must tell you clearly, directly and in multiple formats before it happens.

It's unacceptable that many customers only find out about a rate hike after they've already been hit with a higher bill. This bill would bring transparency into the process by requiring utilities to notify customers via text, email, and on their monthly bill. Also S2460, a Consumer Representation Bill, that we have legislation that would bring consumer voices back to the table by adding a representative from the Consumer Protection Stability Division's Utility Intervention Unit to the State Energy Planning Board, which would help make certain

policy decisions that affect our wallets and well-being, should include the people who actually pay the bills, not just industry insiders or bureaucrats.

We passed that bill. Unfortunately, it didn't make it to the Assembly. It's going to hopefully get passed this year. And there are other -- several other bills included in the Utility Affordability Package, and I hope that the Governor will sign those also. We want to do whatever we can to make sure that we do more to ensure that the Public Service Commission, when they look at these rate cases, look at really how it impacts people.

They want -- I'm trying to stay on script to make my staff happy, but I want to jump off script for a minute. The issue with the rate cases and the public, and the way that the folks have an ability to access it is too unwieldy, it's too -- it's too difficult, even for folks that are experts at it, to really impact these cases. It's truly unfair to the public. The system needs to be changed.

I just want to bring up another issue regarding Con Edison specifically and the fact that

they are putting in an installation of a battery energy storage system at 179-21 Linden Boulevard by NineDot Energy. This proposed project is situated adjacent to private homes, a funeral home, a fire, and a welding -- tire -- tire and a welding shop, and a veterans hospital, and is in close proximity to a public school.

This has sparked major alarm among the residents, who actually is in the Addisleigh Park area, which is a historic district. They're worried about the safety risks associated with lithium-ion battery systems, especially in the light of documented incidents and recent projected cancellations and other Boroughs following public opposition.

Additionally, community members have identified alternative properties where they could locate this substation that is being proposed along 1 10th Avenue and in commercial areas. They've listed four places where Con Ed that are currently available for rent or lease, and could be suitable locations for this type of battery ion storage facility. Compounding the community's concern is the property's

prior uses as a gas station. There are lingering fears that underground fuel tanks may not have been properly removed. And there's also a concern because there's a layer of plume that is still sitting on the ground that may be sparked by these batteries.

While NYDOT has stated that the tanks were safely removed under the supervision of the appropriate agency, documentation has not been shared with the community that that was done. Given these issues, we continue to hear what we now echo -- on what we now are concerned, what assurances would the community have that this potential danger is properly being regulated by the New York State Public Service Commission?

Unfortunately, the information that has been provided by NYDOT does not sufficiently address this core question. Communities deserve transparency and assurances that these energy facilities are subject to rigorous regulatory scrutiny and public engagement regardless of coming allowances.

And we're very upset with Con Ed because Con Ed just is -- we work with two

communities to put in a major substation that is being built on 110th (ph.) Avenue, with the promise that that substation would be enough to meet the electrical needs in the community, they did not pre-inform us that they were now going to put in lithium-ion substations in and around the community.

In addition to that, they should have had more public discussion with us before siting these locations, even though they claim they have the authority to do so because it's as of right. It's not as of right morally, or the final is definitely hampered, and now permanently hindered its relationship with the Southeast Queens community.

You can't promise a large substation on one hand, and then turn around and site things without community input, on the other hand. The community had major input in siting the substation, had an opportunity to do so, and then to find out that they're going to put four different battery lithium-ion places without proper community notice is unfair as well. And they need to be -- they called on the carpet for that.

This location specifically needs to be

moved because it's sitting on a plume of old oil and gas at that gas station, that cannot be mitigated easily. And we think, and that community, especially, as a historic community which has worked hard to maintain its historic location, and its historic status, are truly concerned and freaked out by the fact that they want to put a lithium battery ion station there.

So Con Ed needs to be called on the carpet about that. They need to be requested to move this location, and furthermore, their income and their revenues show that they do not need any more money. There's no need for additional money to be given to Con Ed by the public. They're already having enough income. If you look at their annual reports, it doesn't substantiate the need for them to continue to go to the public for rate increases.

New Yorkers are paying way too much for utility bills now for companies that are making plenty of money on their bottom line.

Thank you for allowing me the extra time to speak. We will be continuing to work on the legislative side, to do more, to give the public an

opportunity to have more impact on these rate cases, to understand them better, and to better help the Public Service Commission really help the public by lowering bills and not increasing them. Thank you.

ALJ KERSEY: Thank you, Senator. Thank you.

Do we have any other folks who would like to speak?

Okay. I want to remind you again, you can submit comments on the Department's website, www.dps.ny.gov by regular mail or by phone. Again, information regarding these alternative methods is available from our Office of Consumer Services' staff. You can submit comments regarding these proceedings by these other means that I described, even if you spoke today, and you must do so by November 21st, 2025, for those comments to be considered.

UNIDENTIFIED SPEAKER: Say again?

ALJ KERSEY: November 25th (sic), 2025. Again, I want to thank you for your participation today. I want to thank you to Senator Comrie, and his office, and his staff for

facilitating this event here at the C.W. Mixon Center.

And I want to say that this hearing is concluded this evening. We are off the record. Thank you for coming. Thank you.

(The hearing concluded at 7:56 p.m.)

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STATE OF NEW YORK

I, ILDIKO NYARI, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 56, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 13th day of July, 2025.

ILDIKO NYARI, Reporter